

[Browse - California Code of Regulations Table of Contents](#)

§ 2200. Annual Fee Schedules.

23 CA ADC § 2200
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Barclays California Code of Regulations

Title 23. Waters

Division 3. State Water Resources Control Board and Regional Water Quality Control Boards

Chapter 9. Waste Discharge Reports and Requirements

Article 1. Fees

23 CCR § 2200

§ 2200. Annual Fee Schedules.

Currentness

Each person for whom waste discharge requirements have been prescribed pursuant to Section 13263 of the Water Code shall submit, to the state board, an annual fee in accordance with the following schedules. The fee shall be submitted for each waste discharge requirement order issued to that person. ¹

(a) The annual fees for persons issued waste discharge requirements (WDRs), except as provided in subdivisions (a)(3), (a)(4), (b), and (c), shall be based on the discharge's threat to water quality (TTWQ) and complexity (CPLX) rating according to the following fee schedule, plus applicable surcharge(s).

<i>Threat to Water Quality (TTWQ)</i>	<i>Complexity (CPLX)</i>	<i>Discharge to Land or Surface Waters²</i>	<i>Land Disposal³ -- Not Paying a Tipping Fee⁴</i>	<i>Land Disposal³ -- Paying a Tipping Fee⁵</i>
1	A	\$206,106	\$78,467 ⁶	\$65,687 ⁶
1	B	\$130,170	\$63,376	\$53,053
1	C	\$70,237	\$40,742	\$34,107
2	A	\$46,915	\$33,950	\$28,422
2	B	\$28,205	\$27,163	\$22,737
2	C	\$21,150	\$20,372	\$17,053
3	A	\$16,669	\$13,580	\$11,370
3	B	\$8,878	\$10,186	\$8,525
3	C	\$3,945	\$4,526	\$3,790

Public wastewater treatment facilities with approved pretreatment programs are subject to a surcharge of \$10,000. Facilities that are required to have a pretreatment program that are subject to both subdivision (a) and subdivision (b)(8) shall only pay a single annual \$10,000 surcharge. Agencies with multiple facilities under one approved pretreatment program shall pay a \$10,000 surcharge per program.

Oil and gas produced water storage and disposal facilities regulated by waste discharge requirements are subject to a surcharge per barrels of wastewater discharged in the prior 12 months according to the following schedule:

<i>TTWQ & CPLX Rating</i>	<i>No Barrels</i>	<i>1 to 999,999 Barrels</i>	<i>1,000,000 or more Barrels</i>
1A	\$600	\$1,000	\$50,000
1B	\$600	\$1,000	\$50,000
1C	\$600	\$1,000	\$50,000
2A	\$600	\$1,000	\$40,000
2B	\$600	\$1,000	\$30,000
2C	\$600	\$1,000	\$10,000

3A	\$600	\$1,000	\$4,000
3B	\$600	\$1,000	\$2,000
3C	\$600	\$600	\$600

(1) Threat to water quality (TTWQ)⁷ and complexity (CPLX) of the discharge is assigned by the regional board in accordance with the following definitions:

THREAT TO WATER QUALITY

Category “1” -- Those discharges of waste that could cause the long-term loss of a designated beneficial use of the receiving water. Examples of long-term loss of a beneficial use include the loss of drinking water supply, the closure of an area used for water contact recreation, or the posting of an area used for spawning or growth of aquatic resources, including shellfish and migratory fish.

Category “2” -- Those discharges of waste that could impair the designated beneficial uses of the receiving water, cause short-term violations of water quality objectives, cause secondary drinking water standards to be violated, or cause a nuisance.

Category “3” -- Those discharges of waste that could degrade water quality without violating water quality objectives, or could cause a minor impairment of designated beneficial uses as compared with Category 1 and Category 2.

COMPLEXITY

Category “A” -- Any discharge of toxic wastes; any small volume discharge containing toxic waste; any facility having numerous discharge points and groundwater monitoring; or any Class 1 waste management unit.

Category “B” -- Any discharger not included in Category A that has physical, chemical, or biological treatment systems (except for septic systems with subsurface disposal), or any Class 2 or Class 3 waste management units.

Category “C” -- Any discharger for which waste discharge requirements have been prescribed pursuant to Section 13263 of the Water Code not included in Category A or Category B as described above. Included are dischargers having no waste treatment systems or that must comply with best management practices, dischargers having passive treatment and disposal systems, or dischargers having waste storage systems with land disposal.

(2) For dischargers covered under Statewide General WDRs for Sanitary Sewer Systems, the TTWQ and CPLX designations are assigned based on the population served by the sanitary sewer system. The table below describes the correlation between population served and TTWQ and CPLX designations to determine the appropriate annual fee:

<i>Population Served⁸</i>	<i>Threat and Complexity Designation</i>
Less than 50,000	3C
50,000 or more	2C

(3)(A) For dischargers covered under Statewide General WDRs for discharges of winery process water, the annual fees shall be based on the following schedule:

<i>Facility Process Water Flow (gal/yr)</i>	<i>Fee</i>
10,000 to 30,000	\$889
>30,000 to 100,000	\$1,186
>100,000 to 300,000	\$1,423
>300,000 to 600,000	\$2,372
>600,000 to 1 million	\$3,558
>1 million to 3 million	\$8,301
>3 million to 7 million	\$15,417
>7 million to 15 million	\$22,532

(B) Dischargers enrolled in an approved Local Agency Oversight program will receive a 50 percent fee reduction.

(C) Dischargers enrolled in an approved sustainability program will receive a 10 percent fee reduction.

(D) Dischargers enrolled in an approved Local Agency Oversight program and an approved sustainability program will receive a 50 percent reduction of the annual fee that results from the application of a 10 percent fee reduction.

(E) Dischargers with facility process water flows of less than 10,000 gallons per year that are directed by the state board or a regional board to enroll under the Statewide General WDRs for discharges of winery process water shall pay the fee applicable to dischargers with 10,000 to 30,000 gallons per year.

(F) Dischargers with facility process water flows of 10,000 to 30,000 gallons per year that are directed by the state board or a regional board to enroll as a Tier 2 facility under the Statewide General WDRs for discharges of winery process water shall

pay the fee applicable to dischargers with >30,000 to 100,000 gallons per year.

(4) The fees for discharges of dredge and fill material shall be as follows.⁹

Standard Fee:¹⁰

<i>Discharge Category</i>	<i>Application Fee</i> ¹¹	<i>Project Fee</i>	<i>Annual Fee</i> ¹²
(A) Fill and Excavation ¹³ Discharges	\$4,212	Impact area in acres x \$37,544, minus application fee, up to a maximum of \$365,465. If this amount is \$0 or less, then no project fee is required.	An annual fee will be assessed based on the fee schedule in effect at the time the invoice is issued until a Notice of Completion is submitted and approved. The annual fees for the current fiscal year are as follows: \$3,540 for first five fiscal years following the effective date of the order, then \$563 beginning with the sixth fiscal year.
Discharge area expressed in acres rounded to two decimal places (0.01 acre)			
(B) Dredging ¹⁴ Discharges (except Category C activities see (C) below)	\$4,212	N/A	Annual dredge volume in cubic yards x \$0.921, up to a project maximum of \$365,465. The minimum annual fee is \$4,212.
Dredge volume expressed in cubic yards.			

Activity-Specific Fee:¹⁵

<i>Discharge Category</i>	<i>Application Fee</i>	<i>Annual Fee</i>	
(C) Sand Mining, In-Stream Gravel Mining and Beach Nourishment Discharges	\$4,212	\$1,405	
Aggregate extraction in surface waters where source material is free of pollutants and the dredging operation will not violate any basin plan provisions and beach nourishment projects.			
(D) Ecological Restoration and Enhancement Projects ¹⁶	\$1,123	\$563	
The project meets the definition of an "Ecological Restoration and Enhancement Project" set forth in the State Wetland Definition and Procedures for Discharges of Dredged or Fill Materials to Waters of the State, adopted by the State Water Board on April 2, 2019. ¹⁶			
(E) Low Impact Discharges	\$4,212	\$563	
Projects may be classified as low impact discharges if the project meets all of the following criteria:			
1. The discharge size is less than all of the following: (a) for fill, 0.1 acre, and 300 linear feet, and (b) for dredging, 25 cubic yards.			
2. The discharger demonstrates that: (a) all practicable measures will be taken to avoid impacts; (b) where unavoidable temporary impacts take place, waters and vegetation will be restored to pre-project conditions as quickly as practicable; and (c) where unavoidable permanent impacts			

take place, there will be no net loss of wetland, riparian area, or headwater functions, including onsite habitat, habitat connectivity, floodwater retention, and pollutant removal.			
3. The discharge will not do any of the following: (a) directly or indirectly destabilize a bed of a receiving water; (b) contribute to significant cumulative effects; (c) cause pollution, contamination, or nuisance; (d) adversely affect candidate, threatened, or endangered species; (e) degrade water quality or beneficial uses; (f) be toxic; or (g) include "hazardous" or "designated" material.			
(F) Emergency Projects Authorized by a Water Board General Order	\$4,212	\$563	
(G) Amended Orders ¹⁷			
Amendments of WDRs or water quality certifications previously issued.			
(1) All category (D) Ecological Restoration and Enhancement Projects, regardless of amendment type.	(1) No fee required	Annual fee applicable per discharge category	
(2) Administrative amendments including, but not limited to, ownership changes, typographic edits, or time extensions that do not result in a temporal loss of resource function. Amendments in this category require no technical analysis or additional compensatory mitigation.	(2) No fee required		
(3) Amendment results in changes(s) in impact character, location, or volume of the discharge; or a time extension that results in a temporal loss of resource function, according to the following criteria:	(3) Additional standard fee assessed per increased amount of discharge(s). The minimum fee is \$4,212.		
• Amendment increases the active certification's impact quantity by less than 50 percent, and			
• Amendment does not require a change to the mitigated aquatic resource type.			
(4) Amendment requires a supplemental CEQA analysis, or Amendment results in change(s) in impact character, location, or volume of the discharge, or a time extension that results in a temporal loss of resource function, according to the following criteria:	(4) New standard fee assessed per new project discharge total. The minimum fee is \$4,212.		
• Amendment increases the active certification's impact quantity by more than 50 percent, or			
• Amendment requires a change to the mitigated aquatic resource type.			
(H) Wildfire Mitigation by Electrical Corporations, Electrical Utilities, and Electrical Cooperatives	N/A	\$40.00 per mile of overhead electrical lines identified as high risk or high threat in the wildfire mitigation plan.	
Dredge or fill activities conducted by electrical corporations, electric utilities, and electrical cooperatives pursuant to a wildfire mitigation plan prepared in			

accordance with Public Utilities Code, section 8386(b) or section 8387(b)(1). This annual fee covers all dredge or fill activities conducted by the electrical corporations, electric utilities, and electrical cooperatives pursuant to a wildfire mitigation plan, and is in lieu of the project-specific dredge or fill fees in section 2200(a)(3)(A)-(G) for dredge or fill activities conducted pursuant to a wildfire mitigation plan.			
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(b) The annual fees for persons issued NPDES permits shall be based on the following schedules, plus any applicable surcharge(s).

(1)(A) Each public entity that owns and/or operates a storm water conveyance system, or part of such a system, that is subject to a NPDES permit for storm water dischargers from a municipal separate storm sewer system (MS4) shall pay an annual fee according to the following schedule. The fee shall be based on the population of the public entity according to the most recently published United States Census. Public entities other than cities or counties (Non-Traditional Small MS4s¹⁸), shall pay an annual fee according to the following schedule, based on the average daily population¹⁹ using the entities' facilities, unless otherwise provided in the schedule. Flood control districts or other special districts named as co-permittees to MS4 permits and school districts, serving students between kindergarten and fourteenth grade, shall not pay an annual fee if the city or county within whose jurisdiction the district lies oversees the district's storm water compliance and pays an annual fee.

ANNUAL FEE SCHEDULE FOR AREAWIDE MUNICIPAL STORM WATER SEWER SYSTEM PERMITS AND CO-PERMITTEES

<i>Population</i>	<i>Fee</i>
Equal to or greater than 250,000	\$72,787
200,000 to 249,999	\$63,688
150,000 to 199,999	\$54,953
100,000 to 149,999	\$45,494
75,000 to 99,999	\$36,393
50,000 to 74,999	\$27,293
25,000 to 49,999	\$18,196
10,000 to 24,999	\$10,920
1,000 to 9,999	\$7,279
Less than 1,000 population	\$3,641
Statewide Permit Holders	\$291,144
High Speed Rail Authority	\$170,711

(B) Dischargers applying for the Small MS4 Waiver of a General Permit to Discharge Storm Water Associated with Small Municipal Activity issued by the state board shall pay an application fee of \$200.

(2) Any entity or entities submitting a watershed improvement plan to the regional board for review pursuant to Section 16102 of the Water Code shall reimburse the regional board for its costs²⁰ to review and oversee the implementation of the plan, which shall be calculated using a rate of \$185 per hour.

(3) Facilities that discharge storm water associated with industrial activities that are regulated by a state board or regional board general NPDES storm water permit shall pay an annual fee based on the total number of acres of industrial activities and materials exposed to storm water as follows:

<i>Acres</i>	<i>Annual Fee</i>
>0 to <1	\$1,701
1 to <5	\$1,723
5 or more	\$1,873

An amount equal to the fee prescribed shall be submitted with the discharger's Notice of Intent (NOI) to be regulated under the general NPDES permit and will serve as the first annual fee. For the purposes of this section, an NOI is considered to be a report of waste discharge.

(4)(A) Storm water discharges associated with construction activities that are regulated by a general NPDES storm water permit other than those covered under (b)(4)(B)-(D), including those issued by a regional board, shall pay an annual fee of \$511 plus \$54 per acre (rounded to the nearest whole acre and dollar amount), to a maximum fee of \$11,311, based on the total acreage to be disturbed during the life of the project as listed on the NOI. An amount equal to the fee prescribed shall be submitted with the discharger's NOI to be regulated under the general NPDES permit and will serve as the first annual fee. If the total acreage to be disturbed is increased by a Change of Information (COI) submitted to the Water Boards, the per acre fee for the additional

acreage shall be submitted with the COI. For the purposes of this section, an NOI is considered to be a report of waste discharge.

(B) Stormwater discharges associated with Executive Order N-73-20 requesting statewide programmatic General Permit coverage for multiple non-contiguous linear underground and overhead broadband projects, shall pay an annual fee of \$10,000 plus \$54 per acre (rounded to the nearest whole acre and dollar amount) based on the total acreage to be disturbed during the life of the project as listed on the NOI. An amount equal to the fee prescribed shall be submitted with the discharger's NOI to be regulated under the general NPDES permit and will serve as the first annual fee. For the purposes of this section, an NOI is considered to be a report of waste discharge.

(C) Stormwater dischargers requesting programmatic General Permit coverage for multiple non-contiguous linear underground and overhead projects within a single Regional Water Board jurisdiction, shall pay an annual fee of \$11,311 per NOI. An amount equal to the fee prescribed shall be submitted with the discharger's NOI to be regulated under the general NPDES permit and will serve as the first annual fee. For the purposes of this section, an NOI is considered to be a report of waste discharge.

(D) Dischargers applying for the Small Construction Rainfall Erosivity Waiver of a General Permit to Discharge Storm Water Associated with Construction Activity issued by the state board shall pay an application fee of \$200.

(5) Discharges associated with mosquito and vector control activities²¹ that are regulated by an individual or general NPDES permit adopted specifically for these purposes, including those issued by a regional board, shall pay a fee of \$250. Dischargers filing an application for a mosquito and vector control permit shall pay a fee of \$250. The fee shall be paid each time an application for initial certification or renewal of certification is submitted. Mosquito and vector control fees are not subject to ambient water monitoring surcharges.

(6) Planned and emergency discharges from community water systems that are regulated by a general NPDES permit adopted specifically for this purpose shall pay an application fee and subsequent annual fees (if applicable) based on the number of service connections for the public water system in accordance with the following schedule. The application fee shall be submitted with the discharger's NOI to be regulated by the general NPDES permit. For purposes of this section, an NOI is considered to be a report of waste discharge.

Dischargers with a Single System

<i>Service Connections</i>	<i>Application Fee</i>	<i>Annual Fee</i>
15-999	\$176	No Annual Fee
1,000-9,999	\$881	\$881
10,000 or more	\$3,630	\$3,630
Transmission System or Water Wholesaler	\$3,630	\$3,630

Dischargers with Multiple Systems

<i>Total Number of Service Connections</i>	<i>Application Fee</i>	<i>Annual Fee</i> ²²
15-999	\$176	No Annual Fee
1,000-9,999	\$881	\$881 per Primary System fee plus \$176 per Secondary System
10,000 or more	\$3,630	\$3,630 per Primary System fee plus \$176 per Secondary System
Transmission System or Water Wholesaler System	\$3,630	\$3,630 per Primary System fee plus \$176 per Secondary System

(7) Seawater desalination facilities that have submitted a request for a determination of consistency with California Water Code section 13142.5(b) are subject to an annual fee according to the following fee schedule until a determination is made, with a maximum annual fee of \$282,241:

<i>Fee Basis</i> ²³	<i>Base Fee</i>	<i>Proposed Intake Volume Multiplier</i>
Subsurface Only	\$84,672	\$1,422 per mgd
Surface, Combined Surface and Subsurface, or Alternative Intake Technology	\$169,345	\$1,422 per mgd

(8) Discharges from public wastewater treatment facilities that are regulated by a general NPDES permit adopted specifically for this purpose and all other NPDES permitted discharges, except as provided in (b)(9), (b)(10), and (c), shall pay a fee according to the following formula:

Fee equals \$3,630 plus 6,418 multiplied by the permitted flow, in mgd, with a maximum fee of \$907,519 plus any applicable surcharge(s).

If there is no permitted effluent flow specified, the fee shall be based on the design flow of the facility.

NPDES permitted industrial discharges²⁴ with a threat/complexity²⁵ rating of 1A, 1B, or 1C are subject to a surcharge as follows:

Threat/Complexity Rating 1A -- \$15,000

Threat/Complexity Rating 1B -- \$10,000

Threat/Complexity Rating 1C -- \$5,000

Public wastewater treatment facilities with approved pretreatment programs are subject to a surcharge of \$10,000. Facilities that are required to have a pretreatment program that are subject to both subdivision (a) and subdivision (b)(8) shall only pay a single annual \$10,000 surcharge. Agencies with multiple facilities under one approved pretreatment program shall pay a \$10,000 surcharge per program.

(9)(A) Flow for wet weather municipal facilities²⁶ will be based on the previous five years' actual monthly average flow,²⁷ as of the date the permit is issued.

(B) Notwithstanding (9)(A), the minimum annual fee for wet weather municipal facilities shall be \$20,000.

(10) All other general NPDES permits and de minimis discharges²⁸ that are regulated by an individual or general NPDES permit, including those issued by a regional board, shall pay a fee as follows:

Category 1 -- Discharges that require treatment systems to meet priority toxic pollutant limits and that could impair beneficial uses if limits are violated: \$20,907

Category 2 -- Discharges that require treatment systems to meet non-priority pollutant limits, but are not expected to impair beneficial uses if limits are violated. Examples of non-priority pollutants include, but are not limited to, nutrients, inorganic compounds, pH, and temperature: \$12,635

Category 3 -- Discharges that require minimal or no treatment systems to meet limits and pose no significant threat to water quality: \$3,630

Category 4 -- Discharges that require minimal or no treatment systems to meet limits and are authorized by the Regional Water Board to augment ambient streamflow conditions to support aquatic organisms during times of low streamflows where conditions threaten survival of aquatic organisms: \$277

(c) The annual fees for waste discharge requirements and waivers of waste discharge requirements for discharges from confined animal facilities shall be based on the following schedules. If a facility contains animals that fit multiple fee categories, the fee will be based on the number of animals in the category that results in the highest fee.

Dairies -- Mature Dairy Cattle or Water Buffalo

<i>Number of Animals</i>	<i>Fee</i>
3,000 or more	\$21,006
1,500 to 2,999	\$13,129
700 to 1,499	\$6,301
300 to 699	\$3,150
150 to 299	\$1,576
50 to 149	\$788
0 to 49	\$0

Feedlots -- Cattle or Cow/Calf Pairs

<i>Number of Animals</i>	<i>Fee</i>
100,000 or more	\$15,757
10,000 to 99,999	\$7,878
5,000 to 9,999	\$4,199
1,000 to 4,999	\$2,101
100 to 999	\$1,052
0 to 99	\$0

Feedlots -- Calves

<i>Number of Animals</i>	<i>Fee</i>
10,000 or more	\$7,878

5,000 to 9,999	\$4,199
1,000 to 4,999	\$2,101
300 to 999	\$1,041
0 to 299	\$0

Feedlots -- Heifers

<i>Number of Animals</i>	<i>Fee</i>
10,000 or more	\$15,757
5,000 to 9,999	\$7,878
1,000 to 4,999	\$4,199
300 to 999	\$2,101
137 to 299	\$1,052
0 to 136	\$0

Feedlots -- Auction Yards

<i>Number of Animals</i>	<i>Fee</i>
1,000 or more	\$4,199
300 to 999	\$2,101
100 to 299	\$1,052
0 to 99	\$0

Dairies -- Goat Dairies

<i>Number of Animals</i>	<i>Fee</i>
1,000 or more	\$2,101
550 to 999	\$1,041
0 to 549	\$0

Hogs -- Swine (≥ 55 Pounds)

<i>Number of Animals</i>	<i>Fee</i>
5,000 or more	\$7,878
2,500 to 4,999	\$4,199
750 to 2,499	\$2,101
150 to 749	\$1,052
0 to 149	\$0

Hogs -- Swine (< 55 Pounds)

<i>Number of Animals</i>	<i>Fee</i>
20,000 or more	\$7,878
10,000 to 19,999	\$4,199
3,000 to 9,999	\$2,101
300 to 2,999	\$1,052
0 to 299	\$0

Horses

<i>Number of Animals</i>	<i>Fee</i>
500 or more	\$4,199
150 to 499	\$2,101
75 to 149	\$1,052
0 to 74	\$0

Sheep or Lambs

<i>Number of Animals</i>	<i>Fee</i>
10,000 or more	\$4,199
3,000 to 9,999	\$2,101

550 to 2,999	\$1,052
0 to 549	\$0

Poultry

<i>Number of Animal Equivalent Units (AEU)</i>	<i>Discharges with Low Threat to Water Quality²⁹</i>	<i>All Other Discharges</i>
2000 or more	\$3,677	\$10,502
700-1,999	\$2,627	\$5,254
300-699	\$1,838	\$3,940
10-299	\$1,052	\$2,101
2-9	\$526	\$1,041
0-1	\$0	\$0

Animal Count to Animal Equivalent Unit (AEU) Conversion Matrix

<i>Animal Type</i>	<i>AEU Multiplier</i>	<i>Number of Animals per AEU³⁰</i>
Turkey	0.0150000	67
Duck	0.0080000	125
Chicken -- Broiler	0.0050000	200
Chicken -- Layer	0.0040000	250
Guinea Fowl	0.0035000	286
Pheasant	0.0027500	364
Pullet	0.0024000	417
Squab	0.0015000	667
Chukar	0.0012500	800
Quail (Japanese)	0.0003750	2,667
Hatchery Chick (day old)	0.0000938	10,661

(1) Facilities that are certified under a Quality Assurance Program approved by the state board or under a County regulatory program approved by the appropriate regional board, will receive a 50 percent fee reduction. Any facility that is issued a notice of violation by a regional board for an off-property discharge shall not be eligible to receive this fee reduction for a minimum of one billing cycle, and for all subsequent billing cycles until recertification and all corrective actions are complete as determined by the regional board.

(2) Facilities that pose no potential to discharge, as determined by a regional board, shall pay a fee of \$200. The fee shall be paid each time an application for initial certification or renewal of certification is submitted.

(3) Facilities that are required to submit a report of waste discharge (ROWD) while the facility is under construction and remains so subsequent to the billing cycle will have the annual fee waived until the facility is in operation and animals are present at the facility.

(4) Facility closures that are required to maintain a permit until all requirements are met shall continue to be assessed a fee based at the same rate as when the facility was in operation.

(5) Facilities covered under a waste discharge requirement or waiver of waste discharge requirement that do not pay annual fees shall pay an application fee for initial coverage and renewals of coverage of \$200. The fee shall be paid each time an application for coverage or report of waste discharge is submitted.

¹ Federal facilities will generally not be invoiced for the portion of the annual fee that is attributable to the state board's ambient water monitoring programs. See *Massachusetts v. United States* (1978) 435 U.S. 444.

² For this table, discharges to land or surface waters are those discharges of waste to land or surface waters not covered by NPDES permits that are regulated pursuant to Water Code Section 13263 and that do not implement the requirements of Title 27 of the California Code of Regulations (CCR). Examples include, but are not limited to, wastewater treatment plants, erosion control projects, and septic tank systems. It does not include discharge of dredge or fill material, discharges from agricultural lands, including irrigated lands, or discharge from animal feeding operations. Dischargers covered by a WDR for municipal and domestic discharges with permitted flows of less than 50,000 gallons per day in categories 2-B, 2-C, 3-B and 3-C will receive a 50 percent fee discount. The design flow shall be used where no permitted flow is present. Municipal and domestic discharges receiving the discount are defined as discharges from facilities that treat domestic wastewater or a mixture of wastewater that is predominately domestic wastewater. Domestic wastewater consists of wastes from bathroom toilets, showers, and sinks from residential kitchens and residential clothes washing. It does not include discharges from food preparation and dish washing in restaurants or from commercial laundromats.

³ For this table, land disposal discharges are those discharges of waste to land that are regulated pursuant to Water Code Section 13263 that implement the requirements of CCR Title 27, Division 2, except Chapter 7, Subchapter 2, § 22560-22565 (confined

animal facilities). Examples include, but are not limited to, discharges associated with active and closed landfills, waste piles, surface impoundments, and mines.

⁴ For this table, Not Paying a Tipping Fee are those land disposal dischargers not subject to Public Resources Code (PRC) § 48000 et seq.

⁵ For this table, Paying a Tipping Fee are those land disposal dischargers subject to PRC § 48000 et seq.

⁶ A surcharge of \$12,000 will be added for Class I landfills. Class I landfills are those that, during the time they are, or were, in operation, are so classified by the regional board under 23 CCR Chapter 15, have WDRs that allow (or, for closed units, allowed) them to receive hazardous waste, and have a permit issued by the Department of Toxic Substances Control under 22 CCR Chapter 10, § 66270.1 et seq.

⁷ In assigning a category for TTWQ, a regional board should consider duration, frequency, seasonality, and other factors that might limit the impact of the discharge.

⁸ Assumes 2.5 persons per equivalent dwelling unit (EDU).

⁹ Fees shall be based on the sum of temporary and permanent impact amounts to be authorized by the order. Impacts include both the excavation and fill area and the dredging area. If water quality certification is issued in conjunction with dredge or fill WDRs or issued for a discharge regulated under preexisting WDRs for the same project, the project will be assessed a single fee derived from this dredge and fill fee schedule. Discharges requiring certification and regulated under a federal permit or license other than a US Army Corps of Engineers Clean Water Act Section 404 permit or a Federal Energy Regulatory Commission License shall be assessed a fee determined from Section 2200(a).

¹⁰ Fees shall be based on the sum of project impacts. Projects that include both category (A) and category (B) discharges shall be subject to the category (A) application and project fees. A single annual fee shall be assessed based on the higher of the applicable annual fee categories.

¹¹ Dischargers shall pay a one-time application fee and the project fee, if a project fee is required, for each project at the time that the application or report of waste discharge is submitted. Application and project fees shall be determined according to the fee schedule in effect on the date of application submittal.

¹² Consistent with Section 2200.2, the sum of the application fee and the project fee shall serve as the first annual fee. If the submittal of this first annual fee does not coincide with the current fiscal year billing cycle, then the next, and only the next, fiscal year billing shall be adjusted to account for the payment of the application fee. The annual fee for category (B) dredging discharges will be calculated using the annual dredge volume authorized in the applicable Order. Annual fee invoices are based on the fee schedule in effect for the fiscal year in which the invoice is issued.

¹³ "Excavation" refers to removing sediment or soil in shallow waters or under no-flow conditions, typically for purposes other than navigation. Examples include, but are not limited to, trenching for utility lines; other earthwork preliminary to discharge; removing sediment to increase channel capacity; and other flood control and drainage maintenance activities (e.g., debris removal, vegetation management and removal, detention basin maintenance and erosion control of slopes along open channels and other drainage facilities).

¹⁴ "Dredging" refers to removing sediment or aquatic vegetation, typically in deeper water for navigation purposes. For fee purposes, this fee category includes aggregate extraction within stream channels, where the substrate is composed of coarse sediment (e.g., gravel) and is replenished by normal winter flows (e.g., point bars).

¹⁵ To qualify for an activity-specific fee category, the whole of a project must meet the fee category description (i.e., all project discharges are limited to those defined by the fee category).

¹⁶ Ecological Restoration and Enhancement Project means the project is voluntarily undertaken for the purpose of assisting or controlling the recovery of an aquatic ecosystem that has been degraded, damaged or destroyed to restore some measure of its natural condition and to enhance the beneficial uses, including potential beneficial uses of water. Such projects are undertaken:

1) in accordance with the terms and conditions of a binding stream or wetland enhancement or restoration agreement, or a wetland establishment agreement, between the real property interest owner or the entity conducting the habitat restoration or enhancement work and:

a. a federal or state resource agency, including, but not limited to, the U.S. Fish and Wildlife Service, Natural Resources Conservation Service, Farm Service Agency, National Marine Fisheries Service, National Oceanic and Atmospheric Administration, U.S. Forest Service, U.S. Bureau of Land Management, California Department of Fish and Wildlife, California Wildlife Conservation Board, California Coastal Conservancy or the Delta Conservancy;

b. a local agency with the primary function of managing land or water for wetland habitat purposes; or

c. a non-governmental conservation organization; or

2) by a state or federal agency that is statutorily tasked with natural resource management. These projects do not include the conversion of a stream or natural wetland to uplands or stream channelization. It is recognized that Ecological Restoration and Enhancement Projects may require ongoing maintenance or management to maximize fish, wildlife, habitat, or other ecological benefits, or filling gullied stream channels and similar rehabilitative activities to re-establish stream and meadow hydrology. Changes in wetland plant communities that occur when wetland hydrology is more fully restored during rehabilitation activities are not considered a conversion to another aquatic habitat type. These projects also do not include actions required under a Water Board Order for mitigation, actions to service required mitigation, or actions undertaken for the primary purpose of land development.

¹⁷ Dischargers that have met the project fee cap will be assessed the minimum fee for each amendment of previously-issued WDR or water quality certification.

¹⁸ Non-Traditional Small MS4s are facilities that have systems similar to separate storm sewer systems in municipalities, such as systems at military bases, large hospital or prison complexes, and highways and other thoroughfares. (40 C.F.R. § 122.26(b)(16)(iii)).

¹⁹ Total daily population must include resident and commuter populations. For public entities other than cities or counties, total daily population must include resident population and non-residents regularly employed in the areas served by the public entity.

²⁰ These costs include labor, state board and regional board administrative costs, and overhead costs.

²¹ A mosquito and vector control activity involves discharge of pesticides into a designated area for the maintenance and control of mosquito larva for the protection of public health from the outbreak of lethal diseases. A mosquito and vector control agency discharges pesticides into surface waters for the control of mosquito larva.

²² All Transmission Systems and Water Wholesaler Systems are Primary Systems. If the Discharger does not have a Transmission System or a Water Wholesaler System, the Discharger's individual water system with the highest number of service connections will be designated as the Primary System. All systems that are not Primary Systems are designated as Secondary Systems.

²³ Fee shall be based on the intake type as defined in the Water Quality Control Plan for Ocean Waters of California Chapter III.M.2.d(1)(a).

²⁴ NPDES permitted industrial discharger(s) means those industries identified in the Standard Industrial Classification Manual, Bureau of Budget, 1967, as amended and supplemented, under the category "Division D-Manufacturing" and such other classes of significant waste producers as, by regulation, the U.S. EPA Administrator deems appropriate. (33 USC Sec. 1362).

²⁵ Threat/complexity categories are listed under (a)(1) of this document.

²⁶ Wet weather municipal facilities are intermittently operated facilities that are designated specifically to handle flows during wet weather conditions.

²⁷ The actual monthly average flow is defined as the average of the flows during each of the months that the discharge occurred during the previous five-year period.

²⁸ De minimis discharge activities include, but are not limited to, the following: aquaculture activities (as defined in Chapter 40, Section 122.25(b) of the Code of Federal Regulations) defined as managed water areas that use discharges of pollutants into that designated area for maintenance or reproduction of harvestable freshwater, estuarine, or marine plants or animals including fish hatcheries; geothermal facilities that utilize, extract, or produce energy from geothermal fluids for heating, generating power, or other beneficial uses, and discharge geothermal fluids to surface waters; aquatic pesticide applications; evaporative condensate; swimming and landscape pool drainage; discharges from fire hydrant testing or flushing; discharges resulting from construction dewatering; discharges associated with supply well installation, development, test pumping, and purging; discharges resulting from the maintenance of uncontaminated water supply wells, pipelines, tanks, etc.; discharges resulting from hydrostatic testing of water supply vessels, pipelines, tanks, etc.; discharges resulting from the disinfection of water supply pipelines, tanks, reservoirs, etc.; discharges from water supply systems resulting from system failures, pressure releases, etc.; discharges of non-contact cooling water, not including steam/electric power plants; discharges resulting from diverted stream flows; water treatment plant discharges; and other similar types of wastes that have low pollutant concentrations and are not likely to cause or have a reasonable potential to cause or contribute to an adverse impact on the beneficial uses of receiving waters yet technically must be regulated under an NPDES permit.

²⁹ These fees apply to discharges from poultry operations that are identified as posing a "low threat to water quality" in the applicable waste discharge requirements or waiver of waste discharge requirements.

³⁰ Rounded to the nearest whole number

Credits

NOTE: Authority cited: Sections 185, 1058 and 13260, Water Code. Reference: Section 13260, Water Code.

HISTORY

1. New subchapter 9 (sections 2200, 2205 through 2207 and 2210) filed 12-5-69; effective thirtieth day thereafter (Register 69, No. 49).
2. Amendment filed 7-2-71; effective thirtieth day thereafter (Register 71, No. 27).
3. Editorial correction (Register 72, No. 41).
4. Amendment filed 5-22-74; effective thirtieth day thereafter (Register 74, No. 21).
5. Amendment filed 10-31-74; effective thirtieth day thereafter (Register 74, No. 44).
6. Amendment filed 1-24-75 as procedural and organizational; effective upon filing (Register 75, No. 4).
7. Amendment filed 12-7-76; effective thirtieth day thereafter (Register 76, No. 50).
8. Amendment filed 4-16-82; effective upon filing pursuant to Government Code section 11346.2(d) (Register 82, No. 16).
9. Repealer and new section filed 2-25-88; operative 2-25-88 (Register 88, No. 10).
10. Repealer and new section filed 8-1-90 as an emergency; operative 8-1-90. Submitted to OAL for printing only pursuant to Water Code section 13260 (Register 90, No. 39).
11. Amendment filed 12-16-91 as an emergency; operative 12-16-91. Text remains in effect uninterrupted pursuant to Water Code section 13260 (Register 92, No. 12).
12. Editorial correction of printing errors in HISTORY 11 (Register 92, No. 43).
13. Amendment of subsection (a)(1) and NOTE filed 2-18-94 as an emergency; operative 2-18-94. Certificate of Compliance filed concurrently. Exempt from OAL review pursuant to Water Code section 13260 (Register 94, No. 7).
14. Editorial correction of subsection (a)(1) (Register 94, No. 7).
15. Amendment of section and NOTE, including renumbering of former subsections (c), (d), (g) and (h) to new sections 2200.1, 2200.2, 2200.3, and 2200.4, respectively, filed 6-5-95; operative 7-5-95 (Register 95, No. 23).
16. Repealer and new section filed 10-29-2002 as an emergency; operative 10-29-2002. Submitted to OAL for printing only pursuant to Water Code section 13620 which provides that the regulations shall not be subject to OAL review and shall remain in effect until revised by the state board (Register 2002, No. 44).
17. Amendment filed 10-27-2003 as an emergency; operative 10-28-2003 (Register 2003, No. 44). Pursuant to Water Code section 13260(f) the emergency amendments remain in effect until revised by the state board.
18. Amendment filed 8-31-2004 as an emergency; operative 7-1-2004. Adopted by the State Water Resources Control Board 5-20-2004; submitted to OAL for printing only on 8-24-2004 pursuant to Water Code section 13260 which provides that the regulations shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the Board (Register 2004, No. 36).
19. Amendment filed 10-13-2005 as an emergency; operative 7-1-2005. Adopted by State Water Resources Control Board 5-19-2005. Submitted to OAL for printing only 10-3-2005 pursuant to Water Code section 13260(f) which provides that the regulations shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Board (Register 2005, No. 41).
20. Amendment filed 8-27-2007 as an emergency; operative 8-27-2007. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Board (Register 2007, No. 35).
21. Editorial correction of subsections (a)(3)(F)4., (a)(3)(I)(d) and (b)(6) and footnote 5.i. (Register 2008, No. 45).
22. Amendment filed 11-6-2008 as an emergency; operative 11-6-2008. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2008, No. 45).
23. Amendment filed 12-15-2009 as an emergency; operative 12-15-2009. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2009, No. 51).
24. Amendment filed 11-18-2010 as an emergency; operative 10-19-2010. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2010, No. 47).

25. Amendment filed 10-19-2011 as an emergency; operative 10-19-2011. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2011, No. 42).
26. Amendment filed 10-23-2013 as an emergency; operative 10-23-2013. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that a regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2013, No. 43).
27. Amendment filed 10-27-2014 as an emergency; operative 10-27-2014. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that a regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2014, No. 44).
28. Amendment of subsection (a), repealer of subsection (a)(4), amendment of subsections (b)(1)(A), (b)(3)-(b)(4)(A), (b)(6)-(7), (b)(9)-(c) and (c)(2) and new subsection (c)(5) filed 10-12-2015 as an emergency; operative 10-12-2015. Submitted to OAL for printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2015, No. 42).
29. Editorial correction of footnote numbering (Register 2016, No. 47).
30. Amendment filed 11-14-2016 as an emergency; operative 11-14-2016. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2016, No. 47).
31. Amendment filed 11-6-2017 as an emergency; operative 11-6-2017. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2017, No. 45).
32. Amendment filed 11-5-2018 as an emergency; operative 11-5-2018. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2018, No. 45).
33. Amendment filed 10-23-2019 as an emergency; operative 10-23-2019. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2019, No. 43).
34. Amendment filed 11-6-2020 as an emergency; operative 11-6-2020. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2020, No. 45).
35. Amendment of subsection (a), new subsections (a)(3)(A)-(F) and subsection renumbering filed 10-18-2021 as an emergency; operative 10-18-2021. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2021, No. 43).
36. Amendment of subsections (a)(4)(A)-(H), (b)(1)(A), (b)(2)-(b)(4)(A), (b)(6)-(8), (b)(10) and (c) filed 11-8-2021 as an emergency; operative 11-8-2021. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulations shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2021, No. 46).
37. Amendment of subsection (b)(10) filed 2-1-2022 as an emergency; operative 2-1-2022. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulations shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2022, No. 5).
38. Amendment of subsections (a), (a)(2) and (a)(4), new subsections (b)(4)(B)-(C), subsection relettering, amendment of subsections (b)(6)-(8), (b)(10) and (c) and amendment of NOTE filed 11-28-2022 as an emergency; operative 11-28-2022. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2022, No. 48).
39. Amendment filed 10-24-2023 as an emergency; operative 10-24-2023 (Register 2023, No. 43). Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulations shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board.
40. Amendment of subsections (a), (a)(3)(A), (a)(4), (b)(1)(A), (b)(3)-(b)(4)(C), (b)(6)-(8), (b)(10) and (c) filed 10-31-2024 as an emergency; operative 10-31-2024 (Register 2024, No. 44). Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2024, No. 44).
41. Amendment of subsections (a)(4), (b)(4)(A) and (b)(4)(C) filed 10-29-2025 as an emergency; operative 10-29-2025. Submitted to OAL for filing and printing only pursuant to Water Code section 13260(f), which provides that the regulation shall be deemed an

emergency, shall not be subject to OAL review, and shall remain in effect until revised by the State Water Resources Control Board (Register 2025, No. 44).

This database is current through 9/18/26 Register 2026, No. 38.

Cal. Admin. Code tit. 23, § 2200, 23 CA ADC § 2200

END OF DOCUMENT